

104. Extent of liability in respect of goods carried in open wagon –

Where any goods, which, under ordinary circumstances, would be carried in covered wagon and would be liable to damage, if carried otherwise, are with the consent of the consignor, recorded in the forwarding note, carried in open wagon, the responsibility of railway administration for destruction, damage or deterioration which may arise only by reason of the goods being so carried, shall be one-half of the amount of liability for such destruction, damage or deterioration determined under this chapter.

Comments

Doctrine of promissory estoppel, cannot be applied in teeth of an obligation or liability imposed by law. – The doctrine of promissory estoppel cannot be invoked for preventing the Government from acting in discharge of its duty under the law. The doctrine of promissory estoppel cannot be applied in teeth of an obligation or liability imposed by law.

Doctrine of estoppel, applies when there is clear and unequivocal promise. – The doctrine of promissory estoppel applies when, inter alia, there is a clear and unequivocal promise relying on which the other act was to his prejudice.

105. Right of railway administration to check contents of certain consignment or luggage – Where the value has been declared under sec. 103 in respect of any consignment a railway administration may make it a condition of carrying such consignment that a railway servant authorized by it in this behalf has been satisfied by examination or otherwise that the consignment tendered for carriage contain the articles declared.

Comments

Section 105 provides for examination by railway administration of goods/consignment of which value has been declared.

106. Re-weighment of goods when obligatory. – It is true that Railway Administration is not always bound to reweigh the goods. But when the railway administration had decided to impose penalty such re-weighment is obligatory. Therefore, the railway authority is bound to re-weigh the goods when asked for.

A person shall not be entitled to claim compensation against railway administration for the loss, destruction, damage, deterioration or non-delivery of goods carried by railway, unless a notice thereof is served by him or on his behalf, -

- (a) to the railway administration to which the goods are entrusted for carriage; or

- (b) to the railway administration on whose railway the destination station lies, or the loss, destruction, damage or deterioration occurs, within a period of six months from the date of entrustment of the goods.

(2) Any information demanded or enquiry made in writing from, or any complaint made in writing to, any of the railway administration mentioned in sub-section (1) by or on behalf of the persons within the said period of six months regarding the non-delivery or delayed delivery of the goods with particulars sufficient to identify the goods shall, for the purpose of this section, be deemed to be a notice of claim for compensation.

(3) A person shall not be entitled to a refund of an overcharge in respect of goods carried by railway unless a notice therefore has been served by him or on his behalf to the railway administration to which the over-charge has been paid within six months from the date of such payment or the date of delivery of such goods at the destination station, whichever is later.

Comments

Section 106 provides the railway administration to which and the period within which the notice of claim for compensation or refund of overcharge shall be given for loss, destruction etc. of the goods carried by railway or for overcharges.

Since the act itself provides the mode it must be held that claim under Sec. 78-B (new Sec. 106) may be preferred by sending such claim to the Chief Commercial Superintendent under a prepared letter and registered under the Indian Post Office Act. Further Sec. 142 (new Sec. 194) of the Act provides for raising statutory presumption of service if letter was properly addressed and registered.

Overcharge – Meaning of. – In common parlance. The simple meaning of “overcharge” is anything charged in excess of what is actually to be charged for a particular thing.

It must be held that when a claimant avails the statutory procedure of the Act within six months then it is sufficient compliance of sec. 78-B (new Sec. 106).

107. Application for compensation for loss, etc. of goods. – An application for compensation for loss, destruction, damage, deterioration or non-delivery of goods shall be filed against the railway administration on whom a notice under Sec. 106 has been served.

Comments